

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN D EVELAND,

Petitioner

VS.

WILLIAM T BALDWIN JR,

Respondent

) Case Number: FDI-25-802148

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, HOME
TO BE LISTED FOR SALE AND THE PROCEEDS HELD IN TRUST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner John D. Eveland and Respondent William T. Baldwin Jr.
- 2) On 11/4/25, Petitioner filed a Petition for Dissolution of Domestic Partnership.
- 3) On 3/2/26, Petitioner filed a Proof of Service of Summons indicating personal service was effectuated on 1/2/26.
- 4) Respondent did not file a Response.
- 5) On 5/1/26, Petitioner filed an ex parte Request for Order seeking to compel the sale of the real property located at 877 Montecito Drive, Los Angeles, CA 94131 (the home). Petitioner asserts that he purchased the home prior to the parties becoming registered domestic partners and paid the mortgage in full until 2020 when the parties added Respondent to the title and began jointly paying the mortgage. Petitioner states he had to move out of the home due to his poor health condition, which requires he reside in a supportive care home in San Francisco. Petitioner claims that Respondent continues to reside in the home and refuses to sell it; however, funds to pay the

1 mortgage and carrying costs are depleted. Petitioner further asserts that he received notice the
2 mortgage has not been paid since November of 2025 and the home is at risk of foreclosure and
3 waste (hoarding and rodent infestation). Petitioner states both parties are of advanced age (early
4 80s) and cannot care for the home. Petitioner requests the Court order Respondent to vacate the
5 home within 30 days and immediately list the home for sale with Petitioner authorized to select
6 the relator.

7 6) On 5/1/26, the Court denied Petitioner's request for emergency relief and set the matter on
8 shortened time on 6/2/26. The Court made a finding that the ex parte Request for Order was
9 served on Respondent.

10 7) On 5/28/26, Petitioner filed a Proof of Service indicating the ex parte Request for Order was
11 served on Respondent by personal service on 5/22/26.

12 8) Respondent did not file a Responsive Declaration.

13 9) On 6/01/26, the Court made the following orders:

14 a. Family Code section 2108 provides the Court's authority "to order the liquidation of
15 community or quasi-community assets to avoid unreasonable market or investment risks"
16 upon a showing of good cause; however, the Court is prohibited from doing so unless
17 "the appropriate declaration of disclosure has been served by the moving party."

18 b. The Court finds Petitioner made a showing of good cause; however, Petitioner did not
19 file a Declaration Regarding Service of Declaration of Disclosure and Income and
20 Expense Declaration (form FL-141) as mandated by Family Code section 2104.
21 Therefore, the requirement for the moving party to serve the appropriate disclosures
22 under Family Code Section 2108 has not been met.

23 c. Accordingly, this hearing is continued to 7/16/26 at 9 AM in Dept. 403.

24 d. At least 10 days in advance of the hearing, Petitioner shall complete his preliminary
25 declaration of disclosure by:

26 i. Serving on Respondent all of the following: Preliminary Declaration of
27 Disclosure (form FL-140), current Income and Expense Declaration (form FL-
28 150), completed Schedule of Assets and Debts (form FL-142) or Community and
29 Separate Property Declarations (form FL-160) with appropriate attachments, all

1 tax returns filed by the party in the two years before service of the preliminary
2 disclosures, and all other required information under Family Code section 2104.

3 ii. Filing Declaration Regarding Service of Declaration of Disclosure and Income
4 and Expense Declaration (form FL-141) with the Court.

5 10) On 7/9/26, Petitioner filed a Preliminary Declaration Regarding Service of Declaration of
6 Disclosure and Income and Expense Declaration.

7 **B. Findings and Order**

- 8 1) Petitioner's Request for Order filed 5/1/26 is GRANTED.
- 9 2) Respondent shall vacate the home located at 877 Montecito Drive, Los Angeles, CA 94131 by
10 5:00 p.m. on 8/14/26.
- 11 3) Petitioner shall have exclusive use and possession of residence located at 877 Montecito Drive,
12 Los Angeles, CA 94131 effective at 5:01 p.m. on 8/14/26.
- 13 4) The home located at 877 Montecito Drive, Los Angeles, CA 94131 shall be listed for sale no later
14 than 8/30/26.
- 15 5) Petitioner is authorized to unilaterally select the realtor for listing of the property for sale.
- 16 6) The parties shall follow the selected realtor's advice regarding any work that needs to be
17 completed to maximize sale proceeds. The Court reserves jurisdiction over any credits or charges
18 for such work paid by either party to the time of trial.
- 19 7) The proceeds from the sale shall be immediately placed in a blocked interest-bearing account
20 until further order of the court, or written agreement between the parties.
- 21 8) The Court will prepare the Findings and Order After Hearing.
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